

ACADEMIC ETHICS AND INTEGRITY

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Chapter 1. CONCEPTUAL DELIMITATIONS

Morality, ethics, deontology. The moral agent

From an etymological point of view, the term *ethics* comes from the Greek *ethos* which means custom, tradition. The term *moral* comes from the Latin *mores* which means appropriate behavior in society, manners, custom. Although these concepts are sometimes used interchangeably as synonyms they refer to different levels.

Morality refers to all the norms, behaviors and beliefs that fall under the couple of opposite terms good-bad. Morality thus aims at the way in which the relationships between individuals and between them and society (family, group, community, nation) are objectified and regulated. The morality of a society or community is represented by what is considered positive or negative in that group. It reflects the values that group consider important (DeGeorge in Denhardt, 1999, pp. 116-117).

Ethics represents the science that investigates the norms, moral principles, theoretical systems that propose one way or another to regulate relationships and achieve good in human societies. We make it clear that ethical discussions are not limited to interpersonal relationships, but they target all those spheres that are related to humans, such as the relationship with nature (environmental ethics), the relationship with other living things (animal rights), etc.

General ethics includes three domains or levels (Craciun, Morar, Macoviciuc, 2005, p. 7):

1. First degree ethics or value-normative ethics (the study of great ethical theories and doctrines);
2. Second-degree ethics or meta-ethics (the study of moral language, that used by first-degree ethics and also common language);
3. Applied ethics (analysis of particular moral cases, such as: abortion, euthanasia, cloning, business, etc., through the criteria and theories proposed by the first and second degree ethics).

Applied ethics consists of a set of subdomains that aims to philosophically analyze problematic situations, significant dilemmas that constitute challenges of the contemporary world. Among these subdomains can be listed: business ethics, medical ethics, bioethics, ethology, ethics of international relations, engineering ethics, scientific research ethics, academic ethics.

Deontology (from the Greek term *deon*, which means obligation, what have to be done) represents a part of ethics that studies the norms and obligations specific to a certain profession. It refers to those mandatory rules for practicing a profession. Thus there is a deontology of the profession of journalist, a deontology of the medical profession, a deontology of the profession of lawyer, psychologist, etc. Deontology is

therefore the ethics of professional duties, the moral agents being members of the respective profession.

The need for deontology resides in the professional specific of the dilemmatic situations faced by workers in that field. In this sense, different deontologies can be understood as forms of ethics applied, this time, to a specific profession. For example, medical deontology establishes all the duties that fall to the doctor in the exercise of his profession, in his relations with the patients, with his colleagues, with the auxiliary medical staff. Thus, the fundamental principle of the medical profession is *primum non nocere*, meaning "first of all do no harm". Professional codes of ethics developed by specialists in those fields in collaboration with ethicists are very useful.

The term **moral agent** denotes a person capable of distinguishing right from wrong and who can be held responsible for his actions. Moral agents have a moral obligation not to harm or cause suffering or damage. The quality of a moral agent is related to that of a rational being. This is why, for example, animals cannot be blamed for their actions. Only beings who can reason and make moral judgments are considered moral agents. Children have a lower potential to be considered moral agents and people with severe mental disabilities may lack the capacity to be moral agents. Adults with full mental capacity can decline to be moral agents only in extreme situations, such as being held hostage. It is precisely this quality that entitles us to hold people responsible for their actions.

Some authors, such as Jeremy Bentham and Peter Singer, argue that although other living things besides humans are not moral agents, they must be included in the moral community and thus become the legitimate subject of moral debates. According to these utilitarian authors, the criterion for this inclusion is not given by the ability to reason, but by the ability to suffer, to feel pain. If it were not so, then we would have to exclude from the sphere of morality small children, the mentally deficient, and we would also have to distinguish degrees of rationality for healthy adults.

Related to the quality of moral agency, several questions are asked in the ethical literature, such as: can corporations (which are not natural persons, but fictions, i.e. legal entities) be considered moral agents? Can robots with artificial intelligence be considered as such?

Values, principles, ethical norms

Ethical values are things considered important to a person or a community. They motivate people to achieve those things. In general, by values I understand those attributes that are considered positive to the wider community, and by non-values negative values that are repudiated, rejected. This aspect of relating values to the group and its culture (moral relativism) is important to understand the notion of moral value. This is because, due to cultural, spiritual, religious differences, different communities relate to and interpret ethical aspects differently. For example, some of the things that Western societies consider moral, natural and normal, may be considered the opposite in Eastern society (equality between the sexes, interracial marriage, divorce, religious tolerance, etc.). It is true that, at the same time, certain values tend to be absolute thus being respected in all cultures (murder, theft, cheating, etc.). This is explained by the fact that

failure to respect and embody those values would threaten the very existence of the respective communities.

Ethical principles represent the fundamental ideas and judgments that refer to ethical values and thus regulate people's behavior. They provide a general framework within which particular ethical dilemmas can be analyzed and resolved. Principles help us in solving ethical problems even (and especially) when situations are not regulated within ethical codes. Principles serve as the foundation for a system of ethical beliefs, they play an important role in the judgments we make about contentious situations, and they regulate our own ethical behavior.

Examples of ethical principles can be considered:

- *The principle of respecting the autonomy of others or the principle of human dignity* (respecting the decisions that other people make about their lives and not interfering with these decisions).
- *The principle of doing good* (the obligation to do good and prevent evil)
- *The principle of refraining from doing harm* (the obligation not to cause harm, suffering, not to engage in activities that may harm others)
- *The principle of equity* (the obligation to treat others equally, fairly and impartially, to give them what they deserve)

Ethical norms represent those rules considered mandatory in a society, according to which its members must conduct themselves. Norms regulate what is considered normal, natural, the expected behavior of people. In other words, norms encode normality in a community. They do not only guide the conduct, but they are also binding. Deviation from the norms is punished by blame, marginalization, exclusion. However, they lack the punitive character specific to legal laws in the sense that they are not provided with a set penalties.

Ethical norms are a source of law, in other words, a source of the legal laws of a country. Norms of behavior and coexistence (good morals) can be incorporated, through political will, into state laws to the extent that there is a consensus and insofar as their non-compliance has significant social consequences.

The specifics of academic ethics

Academic ethics is a specialized type of ethical reflection applied to a field of crucial importance to the moral health of a country, namely the academic field. It is difficult to argue sufficiently how vital is to ensure integrity as a cardinal value for the academic world. The university and academic sphere is that privileged area of specialized training and high-level research from which society's expectations are high. It constitutes the training environment for future specialists in various fields, opinion leaders, politicians and managers in the administration. Universities are the main institutions where knowledge is created and disseminated.

On the other hand, academia is also subject to financial pressure from its academic partners, from the business environment, from the need to develop its infrastructure and make investments, the need to educate more students, etc. Regarding student dishonesty, an assessment conducted in the 1990s in the US and Europe revealed that

between 40 and 70 percent of the students assessed admitted that at one time or another they had copied in an exam or presented copied work as theirs. them (Davis, 1993, p. 23).

To meet the demands of academic integrity so that they do not remain only ideals, to face the reality in amphitheatres, classrooms and laboratories, universities have developed their own codes of ethics and institutional conduct, they have implemented anti-plagiarism tools and introduced in the curriculum compulsory disciplines like the present one.

As Emanuel Socaciu shows, academic ethics is a domain placed at the intersection of research ethics, ethics management in academic organizations and professional deontology of the researcher or educator. The field has experienced a significant autonomy in the last 20-25 years as a result of the need to respond in particular to requirements from research and education funding bodies, as well as pressures from the public opinion (Socaciu in Papadima, p. 9).

As regarding academic integrity, the father of this discipline, the one who coined this term and popularized it was Don McCabe. By academic integrity he understands the moral code of the academic sphere that includes values such as avoiding plagiarism, copying at the exams, ensuring rigor and honesty in publishing academic research and also establishing high academic standards.

Regarding the principles and moral values specific to the academic world, we can list academic freedom, intellectual autonomy of the researcher, acceptance of diversity of opinions, academic merit, etc. The Code of Ethics and Deontology of the Polytechnic University of Timișoara gives priority to the following values: the supremacy of the Constitution and the law, the priority of the public interest, justice and equity, professionalism, impartiality and independence, loyalty, integrity, honor and fairness, transparency, freedom of thought and expression, the exercise of personal autonomy, respect, collegiality, generosity, humanity, decency and elegance.

Emanuel Socaciu shows that every value and principle is accompanied by an interpretation and limiting conditions. For example, academic freedom cannot be invoked to justify the fabrication or falsification of research results. Also the acceptance of the diversity of opinions presupposes a limiting condition that excludes intolerant or racist opinions. The academic ideal of free discussion, rational argumentation, critical thinking is also used in the analysis of one's own values and moral standards so that their reevaluation continues to maintain them as living landmarks of academic life.

For each academic principle or value, a justification can be provided starting from general ethical principles. This is because the great ethical theories as well as common morality constitute fundamental moral landmarks and starting points for the specific debates of academic ethics.

It would be strange if we found that the ethical duties we have as teachers, researchers or students constantly conflict with the more general duties we have as human beings. Of course, the so-called <<conflicts between duties>> can appear in the case of irreducible dilemmas. But if such tensions are ubiquitous rather than local, then perhaps a critical reassessment of the whole system of moral obligations we have assumed is required. Academic ethics, like other fields of applied ethics, must also include a specification or particularization of general ethical principles for a particular cut-out of reality (Socaciu, in Papadima, p. 12).

The values and principles of academic ethics represent a type of knowledge and moral action that extends beyond the academic world. Once appropriated and internalized, this axiological constellation establishes itself as a landmark for professional and personal life. Academic ethics thus represents a crucible for the formation and completion of the character of young people with a strong impact on the morals of a society. The mission of a university is not only to create specialists in the various fields of science, technology, arts or humanities, but also to form personalities and propose human models. This means that, beyond ethics codes, thematic disciplines, anti-plagiarism software and specific tools, the human profile of the teacher or researcher and the pedagogical act are themselves a transposition of the moral values of the university and society as a whole. In this way, education becomes a paideic model of formation and becoming. This model was best illustrated in our culture by Constantin Noica, a philosopher who conceived the teacher in a Socratic manner, as a mediator between the student and himself. His mission (in terms of moral education, we would say) was not so much to convey contents, advice, teachings, but states of mind.

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Chapter 2. ETHICAL THEORIES

Virtue ethics

A virtue is a positive character trait (justice, integrity, honesty, generosity, courage, objectivity, compassion, altruism, loyalty, etc.) the possession of which transforms the possessor into a good being. As Rosalind Hursthouse shows, it is not merely a habit, an automatism, or a tendency to do what is honest or generous, but is a well-rooted trait of the moral subject's personality.

Virtue ethics has its origin in Aristotle who, in his work *Nicomachean Ethics*, claims that man is by nature driven to seek *eudaimonia* (meaning happiness, flourishing, development). This state is attained by men when they are or become virtuous. Virtue is not a pleasure and cannot be obtained by those limited people who take as an end (money, power, fame) what can be at most a means to the ultimate goal, which is happiness. People do not possess virtues naturally, they are not born, but they benefit from birth only with the ability to acquire them through practice or exercise. Just as playing the lyre is learned through practice, resulting in better or worse performers, so humans have the ability to learn the virtues through interactions with their peers and the exercise of moral wisdom (*phronesis*).

Virtue ethics is a plea for virtues as landmarks by which to live our lives and guide our moral choices. A rule-based ethics is not sufficient for this purpose. Any guide or ethical direction, no matter how comprehensive it may be, cannot be a cover for the complex situations of life that often escape attempts at normative systematization. Ethics is not codifiable to serve as a guide for specific actions. Therefore, ethics must be concerned with the quality of the individual rather than with the actions he should undertake. The fundamental question would be "what kind of person should I become, not what actions should I take" (Hursthouse, 1999, p. 17).

Utilitarianism

One of the most relevant formulations of utilitarianism belongs to John Stuart Mill who states that actions are morally right to the extent that they tend to promote happiness, and wrong to the extent that they tend to produce the opposite of happiness. The basis of morality is utility or the principle of greatest happiness. According to this principle, people's actions are good if they bring happiness and bad if they cause unhappiness. Happiness consists in pleasure or the absence of suffering, and unhappiness in pain or the absence of pleasure. Utilitarianism is not meant to be mere hedonism (a morality of pleasure) because it proclaims the primacy of spiritual pleasures which are stronger than bodily pleasures in duration, intensity and certainty. The morality of a deed consists in its utility, to the extent that it is useful, in other words, in the amount of happiness it produces in the world. Ethics thus becomes a practical science of human life and the governing norm of society must be: "the greatest happiness for the most" (Jeremy Bentham).

Utilitarianism is a consequentialism in the sense that actions are judged by their consequences. Utilitarian ethics rejects any *a priori* criteria for judging an action. By this it opposes the Kantian deontological ethics which claims that the action is moral if it is the

result of the application of moral principles independent of the action in question, such as the categorical imperative (Harangus, 2007, p. 31).

There are two forms of utilitarianism. **Action utilitarianism** states that individual acts are the ones that must be morally evaluated according to the results they produce, each one separately. For example, if it is about telling the truth or rewarding a work correctly, the gain in terms of happiness brought by each of these actions is estimated. **Rule utilitarianism** is concerned not with the evaluation of individual actions, but with the utility of a rule relating to categories of actions, such as "Every person must tell the truth" or "Every work must be fairly rewarded." A rule utilitarian does as the relevant rules prescribe, even if in a given situation less total happiness would result. Thus, where the action utilitarian asks "What would be the result if I did this?", the rule utilitarian would ask: "What would happen if everyone did this?".

Over time, several criticisms of utilitarianism have been formulated. One of the most common concerns the impersonal character of this ethic and the fact that it can happen that the happiness of the majority can only be achieved by sacrificing an innocent minority. Utilitarianism has also been accused of approaching morality only through the prism of actions, their consequences, and not through the prism of the intentions or motives of moral actors.

Ethical Kantianism

Immanuel Kant's ethics or Kantian deontology bases moral action on the concept of duty. In Kant's view, to act morally is to act according to **duty**. The reason for our moral acts cannot be provided by the feelings or inclinations we have because these are particular, different from man to man, and cannot be subject to the will (we cannot force ourselves to love or sympathize with someone, it cannot be our duty to do something we are unable to do). Nor can the reason be based on tradition, intuition, or compassion. Only duty can constitute such a basis.

How can be explained this key role given to duty in Kantian ethics? We will find the answer in the absolute end-in-itself value given to man (and any other rational being). For Kant, man and in general any rational being exists as an end in itself, not only as a means, to be used as one pleases (Kant, 1995, p. 246). An example would be the situation where a person needs money and requests this money from his friend as a loan. He uses his friend as a means to solve his financial problems. As long as he pays his debts on time, there is nothing wrong with that. His behavior becomes immoral only when he has no intention of returning his debts because in that case he is only using his friend as a means, without regard to that man's interests. Kant believes that rational beings are not only subjective ends, but objective ends, for which no other end can be substituted, and formulates the following **practical imperative**: "act so as to treat humanity whether in your own person or in that of another, at all times also as an end, and not only as a means".

Kant identifies a series of rules whose observance is imperative. They are not dependent on the context or the particular goals we pursue, but have a universal value, having to be adopted by all rational beings. In this way he ends up formulating the famous **categorical imperative**: "Act only according to that maxim whereby you can, at the same time, will that it should become a universal law." (Kant, 1995, p. 247). Or put it simple

words, act as if your maxim must serve at the same time as the universal law of all rational beings. This imperative should not be seen as a source of moral principles so much as a test of the principles we already have. So we must not cheat because we would not want this to become a universal norm of behavior, we do not want to be cheated by anyone.

Kantian deontology delimits itself from any kind of consequentialism. The moral value of an action is not based on its results or consequences because no matter how good results an action may have, according to Kant's deontological criterion it may be nevertheless immoral in so far as it has not complied with the duty. Thus, for example, in relation to the duty to always tell the truth in any situation, "it would be a crime to tell a lie to a murderer who asks you if a friend of yours, he is looking for, is hiding in your house". It is moral to tell the truth and we must do it regardless of the consequences.

Ethical relativism

Ethical relativism is the view that people from different groups, communities, or cultures hold different views about what is moral and what is not. Its opposite is ethical absolutism which claims that morality is based on unquestionable absolute principles or standards (such as God, conscience, reason, compassion, human dignity, etc.). Ethical relativism claims that there is no such absolute standard of what is good and what is bad, what is right and wrong that can constitute a universal moral law for all people, beyond any obvious differences between them. All moral perspectives are equally valid and it is up to individuals to decide what is true for them. Relativists argue that there are no moral principles and rules that apply to all people, at all times, and in all places. Morality evolves with the evolution of society, culture, customs, knowledge, science and technology.

"Moral relativists believe that many of these differences (of opinions, n.n.) are irresolvable in moral terms. They believe that there are no universal moral standards to which we must subordinate all morals and all tribal legal systems. Moral absolutists claim that there are some universal moral principles, which are necessarily independent of the desires of human beings and which must constitute the foundation of all normative systems that claim to be called moral" (Harre, R., Krancz, M., in Mureşan, Montefiore, 1998, p. 152).

There are two types of ethical relativism:

- **Subjective ethical relativism** supports the view that the truth of moral principles is relative to individuals. It is up to each person to decide what is right for them. It is the individual who establishes the moral principles that govern his life;

- **Conventional ethical relativism** supports the idea that the truth of moral principles is relative to cultures. What is good or bad for a particular individual depends on the moral principles of the culture to which he belongs. Thus, culture represents the moral authority that determines what is good or bad for its members.

Ethical relativism has the advantage of allowing the possibility of the evolution of ethics and reconfiguration of moral norms according to socio-cultural circumstances. But the criticisms against it are much more numerous than its recognized virtues. One of the strongest criticism relates to the fact that, if ethical relativism were correct, then the most reprehensible practices, such as slavery, sexual abuse or ethnic cleansing, could be

justified by appealing to their acceptance by one society or another. The moral standards of one society or another would be a sufficient reason for removing any objection to the most reprehensible customs.

Developments of ethical relativism and ethical absolutism can be found in anthropology, biology and religion.

Ethical realism

This view makes an ontologically bold assumption about the status of ethical propositions and values. Ethical realists (such as G. E. Moore, Thomas Nagel, Derek Parfit) argue that ethical statements express propositions to which objective features of the world correspond, and as such they have truth values. Ethical realism thus becomes a form of ethical cognitivism that claims that moral statements express propositions and can be evaluated as true or false. Good and evil are objective realities, independent of the subject. They do not represent subjective opinions and are not relative to the opinions of individuals or the morals of social groups and communities.

G. E. Moore considers good as a simple, non-natural and unanalyzable property, therefore indefinable. Moral statements are sui-generis statements, that is, specific and not reducible to scientific or metaphysical judgments. Knowledge of moral truths is intuitive, not derivable by inference from non-moral truths. Moral intuition, the way by which people can know moral truth and distinguish right from wrong, is nothing less than the recognition of moral statements as self-evident. In other words, it is only through moral intuition that we can arrive at moral axioms.

According to Moore, ethical egoism, the view that each person should pursue only his own good, is self-contradictory. In the same way he rejects Broad's self-referential altruism, according to which any person should be more concerned with the good of those close to him, such as family and friends. Moore emphasizes that the good cannot be conceived as relative to the moral agent. Such an idea would be unintelligible because good is a simple and unanalyzable property.

On the other hand, in his work *Principia Ethica*, he accepts a certain form of impersonal consequentialism and develops the perfectionist thesis according to which "by far the most valuable things are certain states of consciousness that can be briefly described as pleasures of human interrelationship and the satisfaction of contemplating beautiful things" (Moore, 1997, p. 202).

Ethical non-cognitivism

G. E. Moore's cognitivist position is opposed by the non-cognitivist view that moral statements do not give us knowledge of the world and its moral values. In other words, moral statements are not cognitive statements.

"Non-cognitivists argue that value attributions should not be formulated in the form of propositions of the type whose correctness or acceptability consists in being true

descriptions of the world and, correspondingly, that values cannot be found in things, as authentic properties of things" (Steward, H., in Mureșan, Montefiore, 1998, p. 106).

Ethical statements are neither true nor false, they have no truth value. Among the leading exponents of ethical non-cognitivism are Hare, C. L. Stevenson, S. Blackburn, and A. J. Ayer. According to them, when people make moral statements (judgments like: "It is not good to cheat" or "you should pay your debts") they are not expressing true or false opinions about properties of the world, but expressing attitudes with reference to states of affairs, similar to desires or preferences.

One of the variations of non-cognitivism is ethical emotivism, best represented by A. J. Ayer. According to him, the moral judgments we make are our emotional reactions to certain actions, people or situations. These judgments are approvals or disapprovals that express our emotional response and can be replaced by interjections like: " hooray!" or "bleah!". Sentences like "Stealing is a bad thing" are not sentences by which we know "evil", but sentences by which we manifest our emotional attitude towards the act of stealing.

"By basing every moral evaluation and every moral proposition on subjective, individual preferences, emotivism excludes impersonal, transindividual criteria of evaluation and judgment. And since knowledge is transindividual, it means that he also excludes their cognitive character. Emotivism is consequently a non-cognitivism". (Haranguș, 2007, pp. 28-29).

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Chapter 3. ACADEMIC WRITING

"Writing is a fight against silence" (Carlos Fuentes)

Academic writing concerns both students, masters and doctoral students, as well as professors and researchers, who are involved in the process of writing papers in the university environment. Regardless of the specialized jargon, the field of knowledge, the theories developed, the research methods used or the technological devices used, there are certain characteristics by which an academic writing can be distinguished from other genres of writing. There are two relevant aspects: summarizing or citing the point of view of other relevant authors and proposing your own argument on a particular topic. Most of the time we come into contact with the ideas of others through reading. That's why Mortimer Adler and Charles Van Doren's book: *How to Read a Book: The Classic Guide to Intelligent Reading* emphasizes the importance of different levels of reading—elementary, inspectional, analytical, and syntopic—as necessary steps to enter into the dialogue of ideas and arguments specific to the university environment. Everyone should read, judge and write about subjects of public interest. In college, many professors only ask students to write: reports, projects, written papers, etc.

In order to write, it is necessary to read what others have said about the subject and then enter into a dialogue with them. Young people no longer read academic papers because it is difficult, because they have other distractions and because they do not understand the stake. Teachers are often to blame as they provide too many answers and too few questions. Knowledge and the academic environment are a battlefield of ideas. It is the merit of Gerald Graff who, in his book *Clueless in Academe: How Schooling Obscures the Life of the Mind*, brings to the center of the academic attention the thesis of an education that teach the conflict and the debate of ideas (2003, 13). He also proposes ways of demystifying academic writing. Thus, reading is a dialogue between you and the author (or authors), and writing is a debate between the other authors' ideas and your own.

The "They say / I say" model

How can academic writing be demystified and what would be the next steps? In *Handbook of Academic Writing: They Say/I Say* the American authors Gerald Graff and Cathy Birkenstein of the University of Chicago, Illinois try to answer with a three-part ideational scheme: 1. "They say", 2. "I say" and 3. Linking the parts together. From the authors' perspective, the "They say/I say" template is the central structure of any successful argument which can be found in any valuable academic text. Templates don't just organize ideas, they can generate or stimulate thinking: What do "they say" about my topic? What do "I say" about it? What are my grounds, my proofs? What would a skeptic say about my argument? Who cares? This general perspective approaches classical rhetoric and its emphasis on *topoi* or common places as models for discursive practice.

Although some people believe that templates and linguistic patterns destroy creativity, Graff and Birkenstein insist that templates do not dictate the content of the work, which can be as original as possible, but the form or manner of expression. In short, their view is that templates are rhetorical devices that help organize academic thinking and writing. For example, a simple template for any original research at the master's, doctoral, or postdoctoral level is based on the following two sentences: "Most researchers in the field believe that ____ . As a result of my study ____ ."

They say

At least three major rhetorical steps can be highlighted, which can be identified in academic works as the "playground" of ideas and arguments: 'they say', 'I say' and the linking of parts together. The first step is "they say": the natural order of thinking and writing requires that the beginning of the paper state what others have said, what is the wider context of the debate. This can be done in practice through different methods: summarizing ideas, representative quotation, using statistics, a revealing fact or a relevant anecdote. Summarization and citation are the primary tools by which a writer enters into dialogue with other authors.

Summarizing is a necessary condition to enter into dialogue with the ideas of other authors. In a broad sense, the term "summarization" is synonymous with "paraphrasing", that is, any information or idea that belongs to one or more authors and that the writer presents in his text without quoting exactly (a fragment of text with quotation marks) but certainly indicates the author, the year of publication and the page from which it was inspired (Graff & Birkenstein, 2015, 42). One of the most common ways, along with other legitimate ones recommended by the coordinating professor or by the research methodology, consists of putting in parentheses the author or authors, the year of publication and the page or pages summarized/cited. For example, we should beware of the following dishonest strategy: "The method consists in arranging all the parts we want to steal in a new order, as well as replacing words and phrases with their equivalents. To which we will add, here and there, things from our own production, we will modify the rhythm, we will delete what is superfluous" (Henning, 2009, 51). Failure to honestly identify the author or source of information directly or parenthetically leads to plagiarism or intellectual theft. To properly cite the authors and to make bibliographical references are basic conditions of an academic paper. Any well done summarization must strike a balance between what others have said about the topic and your own interest: "On the one hand, conformity to what the original writer said, but at the same time highlighting those aspects which interests you, the writer" (Graff & Birkenstein, 2015, 43). In other words, any summarization has: an outer dimension, namely paraphrasing the ideas of others, and an inner dimension, focusing on the argument of your text. On the other hand, in the social and natural sciences summarizing the work of others is done rapidly in a sentence or phrase. For example, in Romanian and international literature, several authors have dealt with the subject of the rules for writing a scientific text (Chelcea, 2007; Eco, 2014; Rad, 2017; Zinsser, 2013). Conversely, if we are responding to an author then

we should give readers enough detail about their views in a few long paragraphs. On the other hand, fidelity to the position of the summarized author must be used according to one's own plan and the construction of one's argument.

In addition to summarizing or paraphrasing, the writer of an academic text can formulate his own argument by referring to the arguments of others by quoting exactly what "they say", which is marked by quotation marks (""). The advantages of using citations are multiple: provides credibility, assures the readers of the correctness and accuracy of the respective sayings, as well as confirms the reading of the original source. Along with the error of overquoting or underquoting, there are also "hanging out" quotes or "hit and run" quotes, that is quotes placed in the text without an introduction and interpretation. The solution is to frame the quotes. From the point of view of the authors Graff & Birkenstein (2015, 55): "To adequately frame a quotation, it is necessary to insert it into what we call a quotation sandwich, the statement that introduces it serving as the slice of bread above and the explanations that follow serving as the slice below." In other words, the two parts of the framing refer to, on the one hand, the introductory statements of the quotation which aim to specify who is the author of the quotation, the context and to explicitly formulate the meaning of the message; on the other hand, post-quote statements are meant to explain in one's own words the importance and the relevance of the quote and carefully interpret what one think the chosen quote says trying to be as accurate as possible and close to the meaning of the words used in quotation marks.

In the practice of writing papers, Graff and Birkenstein (2015, 49-50) recommend the use of templates for introducing summarizations (paraphrasing) and quotations: "She recommends ____ .", "They praise the fact that ____ .", "He admits that ____ .", " From X's point of view ____ .", "In her book, ____, X claims that ____ ." In addition, using signal verbs avoids bland formulas in introductory summaries: "X said", "she says", "he discussed", "they consider", etc. Recommended verbs for introducing summarizations and quotations: assert, argue, believe, highlight, insist, observe, support, suggest, remind, etc. Verbs to express agreement: accept, admire, admit, celebrate, glorify, praise, reaffirm, support, verify, etc. Verbs for doubt or disagreement: qualify, contradict, complicit, deplore, refute, claim, question, complain, reject, repudiate, etc. Verbs to make recommendations: warn, impose, encourage, plead, beg, recommend, request, advise, support, etc.

I say

The second major step is represented by the "I say" part which is the part where you offer your own argument to what "they" said. There are three simple rhetorical patterns for responding to and engaging in dialogue with others' ideas: **agreement** ("I agree"), **disagreement** ("I disagree"), and **a combination of agreement and disagreement** ("I hesitate between. I agree that ____, but I cannot agree with ____"). "I say" is not just an iteration or parrot like repetition, but implies asserting a certain difference

from what "they say". Merely expressing disagreement is not enough to write a valuable argument; it is necessary to specify the reasons or grounds on which we base our different ideas. To agree and disagree at the same time, an answer that can be reduced to the formula "Yes and no" ("On the one hand I agree, on the other other side I disagree"), has the advantage of privileging a certain aspect, tipping the scales towards agreement "Yes, but..." or disagreement "No, but...". In practice, various templates can be used to help readers understand your point: agreement with motivations ("I agree that ____ because my experience ____ has confirmed this", "X's theory about ____ is extremely useful, because it sheds light on the difficult question of ____", "Those unfamiliar with this school of thought may be interested to know that it mainly boils down to ____", motivated disagreement ("I do not agree with X's view that ____ because, as recent research shows ____", "X's claims that ____ rest on the questionable assumption that ____", "By focusing on ____, X overlooks the deeper issue of ____") or simultaneous agreement and disagreement ("Although I admit that ____, I still insist that ____", "X is right that ____, but seems to be on more dubious ground when he asserts that ____", "While X is probably wrong to state that ____, is right that ____", "While X provides ample evidences that ____, Y and Z's research on ____ convinces me instead that ____"), which can be used at various points in academic writing (Graff & Birkenstein, 2015, 63-71).

Also, a text becomes valuable if it takes into account and tries to answer three questions: "Are you sure of your argument?", "So what?" and "Who cares?" The first question refers to **the introduction of a skeptic's voice** into the body of the paper ("Although some may object ____, I would answer that ____."). A naysayer is a skeptical or critical thinker. In Romanian, we could equate him with an "doubting Thomas" or "a devil's advocate", whose role is to question and look for weak points in the arguments. Graff and Birkenstein (2015, 82) strongly claim that "no no other method improves a piece of work more quickly than planting a skeptic in the text." Anticipating objections increases your credibility and disarms critics if you convincingly answer their objections. There are a variety of templates by which a skeptic's objections can be introduced into the text: "However, some specialists may dispute my point insisting that ____", "Even though followers of Theory X will probably suggest otherwise and argue that ____", "However, the evidence I have presented really prove conclusively that ____". To reach your goal, convincingly combating objections, you must answer them appropriately: with the most persuasive argumentation possible.

The answer to the questions "Who cares?" and "So what?" emphasize the wider consequences of your statements and highlight the importance of your own reasoning. On the one hand, "Who cares?" is a relevant question insofar as it "specifically asks you **to identify a person or group who cares about what you say**" (Graff & Birkenstein, 2015, 94). For example, the interested individual or group can be: a researcher, a customer, experts in a field, the community of scientists, young people, doctors, etc. Otherwise, if you don't explain who cares, the reader doesn't understand or can't identify with the writer's intended audience, viewing your text as irrelevant. On the other hand, "So what?" is the second relevant question, which requires the writer to emphasize "**the practical applications and consequences** of these claims—what difference they would make if

they were accepted” (Graff & Birkenstein, 2015, 94). In the spirit of American culture, this requirement satisfies the norms of a pragmatist philosophy that an idea is true if it is successful in reality. Otherwise, if you do not explain the reasons, the discussion is only kept at a theoretical, abstract and often too general level. More precisely, it is necessary to justify the importance of what is stated, why it is relevant in a certain matter. Framing should reach the readers and make them care about what you want to say.

Finally, a third important rhetorical step in a scientific paper is to link the parts together (“as a result...”). Graff and Birkenstein (2015, 104) support the idea that each sentence should develop or expand on the previous sentence: “in your writing, converse not only with others but also with yourself: make clear relationships between one statement and the next, connecting these statements together.” In other words, the text should coherently support its own argument and not jump from one idea to another. This helps both the writer and the reader to easily understand the message of the text. Strategies for connecting the parts together, linking the last sentence to the next, are the following: using connectors, transition words and phrases (also, for example, so, however, in conclusion), adding deictic expressions: indicators that strengthen a meaning (this, this, these, he, she, their), developing a set of key words, expressions or phrases and repeating what is stated, but in a slightly different manner (in other words, put differently, in addition).

Chapter 4. TYPES OF PLAGIARISM

"In plagiarism, the last hand tries to hide the first" (Mario Postizzi)

As we have seen, academic writing involves reporting to other authors and their findings. In order to advance your own argument, to support an original idea or to propose an innovation, it is necessary to document and cite or summarize the points of view of the specialists, authorities in the field, i.e. that "they say". Thus, it is legitimate and ethical when using someone else's work to use quotation marks when quoting a piece of text and to explicitly mention the author, the year of publication of the book or article and the exact page (or pages) from which we took inspiration.

The specifics of plagiarism and self-plagiarism

There are authors, among whom we should mention Jean-Luc Henning (2009, 57), who in his book *The Apology of Plagiarism* brings arguments to support the idea that plagiarism is the most widespread thing in the world and that in the absence of original plagiarisms there would be no literature: "Plagiarism, let's not forget, is born from reading. As if too strong a connection or influence would be established between the book and the reader. The reader not only cannot detach himself from it, but he cannot change one jota, he would not know how to reformulate it otherwise, he is engulfed by its charm. The act of writing begins with admiration and the temptation to steal." For others, like William Ralph Inge, originality is nothing more than undetected plagiarism. In *The Devil's Dictionary*, Ambrose Bierce defines plagiarism as "a literary coincidence composed of a compromising precedence and an honorable consequence" (<http://enciclopedie.citatepedia.ro/index.php?c=plagiat>, accessed on 02.09.2018).

Without a universally accepted definition, plagiarism can be simply defined as intellectual theft, meaning the theft of words, ideas, or information. For example, in his article "Towards an Integrated Diagnosis of Plagiarism," Professor Dumitru Sandu (2017), a member of the National Ethics Council (NEC), proposes the following definition with applicability in the academic environment: "Plagiarism is the act of taking elements from another author's intellectual creation and presenting them in the public space as components of one's own work. Plagiarism is the result of the act of plagiarism and refers to the work generated through the unauthorized, intentional or not, from a deontological point of view, such taking." According to this definition, even though a distinction is made within scientific research between an unintentional plagiarism, which is less serious (owed to ignorance of the rules, carelessness, or editing errors) and an intentional, conscious plagiarism, knowingly committed, both forms are subject to the same sanctions. Thus, from a legal perspective, Law No. 206/2004 on Good Conduct in Scientific Research, Technological Development, and Innovation, in Article 4, paragraph (1), letter d), provides that plagiarism is "the exposure in a written work or oral communication, including in electronic format, of texts, expressions, ideas, demonstrations, data, hypotheses, theories, results, or scientific methods extracted from written works, including in electronic format, of other authors, without mentioning this and without referring to the original sources" (http://www.lib.ugal.ro/Legislatie/legislatie_resurse_umane/

[Legea_206_27_mai_2004.pdf](#), accessed on 09/03/2018). In other words, plagiarism includes not only forms of intellectual theft in reality, but also those in virtual space.

From an ethical point of view, self-plagiarism is as blameworthy as plagiarism, counterfeiting, or usurpation of books or authors. The notion of self-plagiarism usually refers to "the reuse of a text, a fragment, or a personal contribution that has been published before in another work or oeuvre without mentioning that this creation is not presented publicly for the first time" (Şercan, 2007a, 23-24). Both students and other participants in academic research can be accused of self-plagiarism and sanctioned accordingly if they republish articles, studies, book chapters, or experiments that were previously published in full or in part for the purpose of some advantage. Not only the academic community sanctions self-plagiarism, but also Law no. 206/2004 on good conduct in scientific research, technological development, and innovation, which under article 4, paragraph (1), letter e) mentions that self-plagiarism includes "the presentation in a written work or oral communication, including in electronic format, of texts, expressions, demonstrations, data, hypotheses, theories, results, or scientific methods extracted from written works, including in electronic format, by the same or the same authors, without mentioning this and without referring to original sources" (http://www.lib.ugal.ro/Legislatie/legislatie_resurse_umane/Legea_206_27_mai_2004.pdf, accessed on 03.09.2018). Obviously, referring to the original sources implies the use of quotation marks for quoted fragments and reference to the author, title of the work, year of publication, and page, as well as including the source in the final "Bibliography" section.

In the context of academic writing, referencing the work of other participants in the research process is done honestly by reporting what "they" say. In the case of plagiarism, however, we are dealing with an dishonest report: "I say" is completely transformed into "they say". Readers are misled in order to not be able to distinguish and accurately identify how much of "my voice" is actually "the voice of others", how much is my original contribution and how much belongs to others.

Types of plagiarism

In order to raise awareness, to better understand and thus limit plagiarism, we present a ranking of the types of plagiarism based on the electronic platform offered by the Turnitin plagiarism detection software (https://www.turnitin.com/static/plagiarism-spectrum/?_ga=2.215361631.%20994571350.1512570748-1133776615.1507661569; Şercan, 2017a, 29-36). Another typology available is offered by the iThenticate software (<http://www.ithenticate.com/resources/infographics/types-of-plagiarism-research>). To exemplify the types of plagiarism offered by Turnitin, we use an adapted and modified excerpt from the book *Irresistible: Technology Addiction and the Businesses Behind It*, by the American psychologist Adam Alter (2017, 40).

1. *Clone or "copy-paste" plagiarism* is the most common type of plagiarism and involves taking word for word, verbatim, the work of another person without using quotation marks and attributing the source

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once hourly. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool.

2. *Partial citation plagiarism* represents the minimal modification of the text (bold) from a single source, with reference to the author (by using parentheses/footnotes, etc.), but without putting the quotation marks.

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	With the exception of the internet addiction, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once a 60 minutes. In 2008, adults spent an average of 18 minutes a day on their mobiles; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is risky, because a device that travels with you is usually a more addictive tool (Alter, 2017, 40)

3. *Paraphrasing plagiarism* occurs when key words are replaced with synonyms or parts of sentences with similar expressions (bold), but without essentially changing the substance of the message. The original source is not specified.

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	Excluding internet addiction, forty-six percent of people say they couldn't live without their mobile devices (some would rather be physically injured than have their phones damaged), and 4 out of 5 teens check their phone every about once an hour. If in 2008, adults spent an average of 18 minutes a day on their mobiles, instead in 2015 they spent 2 hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a means of addiction.

4. *Plagiarism by mixing or juxtaposing* refers to the use of multiple sources by using sentences or phrases in a "worked" combination to make them fit, without specifying the authors and without using quotation marks.

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	It's not just the internet that's addictive, our interaction with our phones can also lead to ill effects. Thus, 80% of teenagers check their phone at least once an hour. If a decade ago the citizens of the states spent just over a quarter of an hour, in 2015 they spent two hours and 48 minutes a day. We are convinced that nowadays people are even more connected in front of their smart devices.

5. *Recycling plagiarism* is synonymous with self-plagiarism, that is, using of a previously published work of the author, with minimal changes (bold), but without specifying the source and without using quotation marks.

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	Net addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically harmed than their phones) and 80% of teenagers check their phone at least once a day hour. In 2008, adults spent an average of eighteen minutes a day on their phones; in 2015 they spent two hours and forty-eight minutes a day. Turning to mobile devices is dangerous, because a device that travels with you is always [] more conductive to addiction.

6. *Hybrid plagiarism* is a type of insidious plagiarism, as the bad intention is obvious, It consists in combining parts of text quoted as adequately as possible with copied fragments (bold) without using quotation marks and the authentic source.

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once a day hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. (Alter, 2017, 40). This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool.

7. *Plagiarism by confusion* is a method that combines various words, sentences or phrases from multiple sources without respecting the forms of citation. Here parts of the plagiarized source text have been put in bold. The other two texts have been plagiarized after:

http://www.sfatulmedicului.ro/Educatie-pentru-sanatate/dependenta-de-smartphone_10954

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http://www.sfatulmedicului.ro/Educatie-pentru-sanatate/dependenta-de-smartphone_10954.

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. Many people jokingly say that they are addicted to the mobile phone, but there are few who are really aware that they have this problem. This turn to mobile devices is dangerous because people keep their smartphones with them from the time they wake up until they go to bed, and these devices provide an almost continuous stream of messages and alerts.

8. *Masked plagiarism* is a form of "second-hand" plagiarism, which refers to the use of non-existent or erroneous information about authors or materials. In the case of our source text we have put the original notes, which were knowingly omitted, and in the plagiarized version were mentioned fictitious sources.

Original version	Plagiarized version
Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones[22]) and 80% of teens check their phone at least once an hour[23]. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day[24]. This turn to mobile devices is dangerous, because a device that travels	Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically hurt themselves than have their phones hurt, according to Scott, 2013) and 80% of teens check their phone at least once an hour (Sussman, 2018, 345). In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn

with you is always a more addictive tool. 22. All statistics here can be found in Rosenberg and Feder, Behavioral Addictions. See also Aaron Smith, "U.S. Smartphone Use in 2015," PewResearchCenter, April 1, 2015, www.pewInternet.org/2015/04/01/us-smartphone-use-in-2015/; Ericsson Consumer Lab, "TV and Media 2015: The Empowered TV and Media Consumer's Influence," September 2015. 23. Kelly Wallace, "Half of Teens Think They're Addicted to their Smartphones," CNN, May 3, 2016, www.cnn.com/2016/05/03/health/teens-cell-phone-addiction-parents/index.html. 24. Kleiner Perkins Caulfield & Byers, "Internet Trends Report 2016," SlideShare, 26 May 2015, www.slideshare.net/kleinerperkins/internet-trends-v1/14-14Internet_Usage_Engagement_Growth_Solid11 Alter, Adam, 2017, Irresistible: Dependence on technology and the businesses behind it, Publica Publishing House, Bucharest, p. 40, notes p. 34.	to mobile devices is dangerous, because a device that travels with you is always a more addictive tool (Musto, 2016, 30).
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9. *Aggregate plagiarism* is a type of plagiarism that does not add anything to knowledge, as it does not add any original contribution, although it respects the norms of citing sources in the body of the text (bold).

Original version	Plagiarized version
"Internet addiction aside, 46% of people say they couldn't live without their phones (some would rather be physically injured than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day. This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool." Alter, Adam, 2017, <i>Irezistibil: Dependența de tehnologie și afacerile din spatele ei</i>, Editura Publica, București, p. 40.	Adam (2017, 40) claims that "Internet addiction aside, 46% of people say they could not live without their phones (some would rather be physically harmed themselves than their phones) and 80% of teenagers check their phone at least once an hour. In 2008, adults spent an average of 18 minutes a day on their phones; in 2015 they spent two hours and 48 minutes a day." The same author believes that "This turn to mobile devices is dangerous, because a device that travels with you is always a more addictive tool" (Adam, 2017, 40).

Another explanation of plagiarism procedures was created by the German researcher Debora Weber-Wulff (apud Șercan, 2017a, 36-38): *translation plagiarism* (without specifying the source), *patched or mosaic plagiarism* (the form of plagiarism by paraphrasing through substituting similar words or expressions with or without specifying the original source), *structural plagiarism* (copying the ideational structure of a work, starting from objectives, theories, to sources, footnotes or research methods) and *plagiarism by manipulating sources* (only part of the copied text is correctly cited between quotation marks with the source specified in parentheses or in footnotes or the author

appears only in the bibliography without being cited exactly in the body of the text).

Professor Dorin Isoc, the author of a book entitled *Plagiarism Preventer* (2014), is also the initiator of a project meant to uncover plagiarized doctoral theses on the website www.plagiate.ro. One starts from the following synthesized definition and explain the situations in which we can speak of such an accusation in any academic work: "Essentially, plagiarism is the act by which the reader is misled regarding the authentic author of the work presented to him by respective publication. The form of manifestation of plagiarism is a work or parts of it about which the reader cannot decide who the author is and is left to believe that the one who calls himself the author is the one who created the work. In order to avoid plagiarism by taking over (by quoting, summarizing or paraphrasing), it is necessary to explicitly identify the volume of the work, through quotation marks or other specific forms, and to make the reference, i.e. to explicitly indicate who the author is and which is the work from which the takeover was made.

As an analysis:

- a) If «whole pages are taken without using quotation marks and without referring to the author», plagiarism is argued by the lack of delimitation of the volume of the takeover.
- b) b) If «paragraphs are taken verbatim without using quotation marks, but a footnote is placed at the end. I specify that these paragraphs are not accompanied by a critical analysis» plagiarism is argued in multiple ways. As the explicit delimitation of the takeover represents an essential condition for identifying the real contribution of any author, the absence of delimitation is not just an omission, but - in the context of taking over from a certain work, a certain author, a certain volume - we can assume a well-motivated intention. Even if quotations are made, the Copyright Law states that the volume of quotations is to be kept as low as possible and the quoted text must be handled explicitly by the person doing the quotations.
- c) If «whole pages are taken without using quotation marks, but in some places certain paragraphs are referred to by a footnote to the author» it is found that:
 - c1) plagiarism occurs because whole pages are taken over, i.e. significant volumes of the authentic work;
 - c2) each takeover, each paragraph is a contribution of the author of the authentic work. The person taking over must indicate to the reader what he took over (the volume, the paragraph, the text enclosed in quotation marks) and from whom he took over. The incidental specification of the name of the authentic author or the inclusion of his name in the bibliographic list is not sufficient to explicitly identify the contribution of each of the authors (apud Şercan, 2015).

Finally, there is information that belongs to the sphere of common knowledge that can be used without the risk of plagiarism. Although it does not have clearly defined contours, universal or common knowledge refers to those information known by most people: historical events ("The Alba Iulia Proclamation took place on December 1, 1918"), geographical data ("Timiș County is the largest county of Romania") or other forms of

"popular" knowledge. In the rest of the cases the appropriate citation is required. Septimiu Chelcea (2007, 46), in the section "Don't plagiarize!" from his work *How to write a bachelor's thesis, a doctoral thesis, a scientific article in the field of social sciences*, provides the following recommendations in order to avoid unintentional plagiarism:

- "To enclose in quotation marks any text that belongs to others.
- To mention the author, the title of the work, the place of publication, the publisher, the year, the page.
- To pay attention to the distinction between common knowledge, which has entered the patrimony of science, and information in the sphere of intellectual property rights.
- To reproduce in our own words the central ideas of a text, correctly mentioning the author and the work that inspired us.
- To distill down the original text, expressing in our own manner the basic ideas of the quoted work.
- To learn to take «smart notes», not just copying sentences and phrases from teachers' lectures.
- To get used to work with reading sheets, where one can summarize the authors' ideas, not just reproduce them in quotation marks."

In other words, the student can avoid plagiarism by knowing the rules for writing a scientific paper according to the requirements and methodology of each university program. Furthermore, a genuine avoidance of the dishonest ways requires an assiduous individual analytical work and a vigilant critical thinking about the ideas and arguments read.

Chapter 5. ACADEMIC INTEGRITY. CORRUPT FORMS OF ACADEMIC INTEGRITY AND THE LACK OF HONESTY

"Lack of integrity is like an ostrich with its head in the sand: it sees no one while everyone sees its ugliness!" (Ioan Hapca).

The specifics of academic integrity

The Politehnica University of Timișoara promotes academic integrity, intellectual property and copyright. In the University Code of Ethics and Deontology of the Politehnica Timișoara University

(https://www.upt.ro/img/files/2014-2015/etica/Codul_de_etica_CartaUPT-Anexa1.pdf, accessed on 04.09.2018) professional integrity is seen as part of personal integrity and the defining features of an honest conduct are considered to be the following:

- "honor, honesty, sincerity;
- treating others on the same basis, without prejudice or preconceived ideas;
- compliance with legal and institutional provisions;
- considering the public and institutional interest as being above the subjective personal interest;
- consistency".

Integrity is associated with the morality of members of the UPT community both in their professional and personal lives, since "scandalous" personal conduct affects the image and discredits the profession.

Corrupt forms of academic integrity

Certainly plagiarism, which I talked about in the previous section, is the main and most common form of dishonesty in academia. However, plagiarism, like the other corrupt forms of academic integrity that we will discuss in this part, does not only affect the student, undergraduate or postgraduate, but also the teaching staff or the researcher. The author of these reprehensible acts consciously and intentionally intends that through an easy but immoral way, illegal and disrespectful towards the other participants in the act of knowledge, to cheat and violate the ethical norms of academic conduct.

In the following, we will use the classification provided by Debora Weber-Wulff (2014, 14-18), who in her work *False Feathers. A Perspective on Academic Plagiarism* presents four corrupt types of academic integrity: ghostwriting, contract cheating, honorary authorship, and data falsification. These dishonest forms could not be detected by experts or plagiarism detection software. It is important to draw attention to these practices and to emphasize the lack of honesty, as well as the fact that there should be zero tolerance for them.

Ghost writing originates in English term "ghostwriting". A ghost writer is actually a real author hired by another person to write a paper. This "cunning" person takes credit without the public and the academic community knowing that the author is someone else. In other words, a ghostwriter is an individual who writes texts for other people, waiving his

copyright. Maybe this "ghost" when we were little was our mother, father, grandmother or uncle who did our homework. Maybe it was a classmate from middle school or high school. It could be a group mate or an older college student. It can be a person with whom we have negotiated virtually without even seeing him and knowing his identity. Obviously, this practice is unacceptable in the university environment since it violates the principles of ethics and the principles of meritocracy, which should govern in the university and in a democratic state. However, ghostwriting is a current reality in the writing of memoirs or remarkable episodes in the lives of politicians, music stars or movie stars

There can be three types of writing that rely on a ghost author: those from university libraries, from "paper factories" and custom papers. Firstly, in university libraries or in special places in different faculties, the theses of former students can be found on analog and/or digital format. A student can make minor changes to the text, removing data and adding updated references, thus turning an honest original author into a ghostwriter. Secondly, there are "factories" or "deposits" with papers (such as referate.ro in our country) where the authors explicitly upload these works or the papers get there through less orthodox ways, without the agreement of the author. In these large databases, customers can find a text to take literally, although administrators can write messages discouraging this dishonest practice. Thirdly, the student or another person can ask a "ghost" for a personalized paper having a certain theme, methodology, bibliography, etc. This type of writing can be very varied: from simple reports or essays of a few pages to full bachelor's papers, dissertations or doctoral theses. A direct way of contacting the "ghost" can be used or, more frequently, firms or companies in the virtual environment can be used to facilitate the disappearance of the "ghost". Therefore, the ghost author may be in good faith (or bad faith depending on the situation) and may write a certain work in exchange for a material or disinterested benefit. However, the responsibility and the blame belong to the person who appropriates this intellectual work and knowingly establish himself as the author of a text which in reality does not belong to him. Although it is difficult to detect such a corrupt form of academic integrity, teachers can monitor the writing of parts of the paper at regular intervals, discuss and question students about the content and collect valuable information from the properties of the Word or PDF document.

Contract cheating is the expression proposed by Robert Clarke and Thomas Lancaster for that form of ghostwriting which can be defined as "the submission of a paper by a student who has paid someone to write it on his behalf" (*apud* Weber-Wulff, 2014, 15). The specifics of this type of dishonesty is that the student or interested person opens an auction in the virtual environment, on a specialized website (such as freelancer.com), in which he specifies exactly the subject and the requirements of the "job": the number of pages, the structure, the bibliography, etc. . Next, a series of ghost writers bid the amount for which they would write the respective work. In the end, most of the time, the applicant chooses the "ghost", who requested the lowest price according to a genuine market economy. For many young people in less developed countries, but also for intellectually capable people who want to increase their income, these auctions and the money won ensure their survival or a certain level of well-being. Most of the time money is transacted

through specialized services, such as PayPal. Contract cheating is a term "too little known in the Romanian academic environment, although the practice it covers is one that is growing in recent years" (Şercan, 2017a, 40). For professors to detect this type of corruption in the academic environment, they should regularly meet with their students, discuss and question the results of their research work.

A third category from the class of corrupt forms refers to *honorary authorship*, which means that one or more people are listed as the authors of a scientific work (article or book) or a research project without them having made any actual contribution. Honorary authors can be students, but also professors. For example, in the case of students, it is quite frequent, especially in the first year of college, that in the case of a collective project a colleague is listed as co-author of the work even though he did not contribute at all to any of the stages of that project. On another scale, it is a common practice to enlist as authors authorities in the field or professors with a certain academic power. The reasons can be various: increased reputation, higher probability of publication, obtaining funds, an increased personal citation index, or the desire to obtain various benefits. Obviously, the current academic development encourages working in research teams whose members can distribute their work tasks (conceiving, theoretical documentation, application part, analysis and interpretation, wording, etc). However, from an ethical point of view, authors of the work should be considered "only those people who have contributed to the study, both in the research part and in the writing of the text" (Weber-Wulff, 2014, 17). Individuals who have made a marginal contribution by providing advice, comments or constructive criticism may be mentioned in the acknowledgments column or in related footnotes. There have been cases of plagiarized works where certain people have been credited as authors without their consent. People who have been funded by various corporations or organizations, which have jeopardized the independence of scientific research. In order to avoid the listing of an author *ex officio*, certain journals require authors to complete a statement of authenticity in which they explicitly specify the fact that they are authors and specificate the contribution they have made to the research. In other words, only people who have made substantial contributions should be cited as authors of a collective work. Individuals who may facilitate publication of the manuscript or obtain funding but who have made no relevant contribution should not be listed as authors.

Data falsification or data alteration in scientific studies is a corrupt form encountered since the 19th century, when the English inventor Charles Babbage classified data fabrication into four categories:

- a) falsification as an elaborate procedure of data alteration;
- b) counterfeiting as complete fabrication of data and information;
- c) editing as removing data that do not correspond and do not verify the working hypothesis;
- d) arrangement as making several measurements or analyzes and exclusively reporting the data considered convenient (Weber-Wulff, 2014, 17).

To limit data distortion and to ensure work ethics in scientific research, one can study the European Handbook on Research Ethics developed by the European Commission (https://ec.europa.eu/research/science-society/document_library/pdf_06/textbook-on-ethics-report_en.pdf), which includes data management procedures related to: "supervision of the data collection method; ensuring the confidentiality of the subjects who participated in the study; storing the data securely so that the database can be made available to other researchers interested in replication; analyzing and using data in a responsible manner; truthful presentation of data" (Şercan, 2017a, 43). Also, students can falsify data when they copy other colleagues' measurements and results in lab classes instead of working independently and accurately.

Dishonest behaviors

Honesty and fairness are rules of conduct in the research and development activity that the Polytechnic University of Timișoara supports and promotes. The code of ethics and deontology of the Politehnica Timisoara University (https://www.upt.ro/img/files/2014-2015/etica/Codul_de_etica_CartaUPT-Anexa1.pdf, accessed on 04.09.2018) mentions in art. 34 that: "Respect for intellectual property and copyright is a professional obligation. Its violation represents a serious ethical misconduct and will be sanctioned", and art. 35 adds that: "Any form of intellectual fraud is prohibited: plagiarism or self-plagiarism, copying in exams or other forms of knowledge verification, substitution of papers or examined persons, intentional distortion of research results, undeserved appropriation of scientific / technical achievements etc." Therefore, the academic environment in general and UPT in particular sanction and do not encourage dishonest behavior: academic cheating and its complicity, data fabrication, plagiarism and infringement of intellectual property. Moreover, art. 36. details the deviations from the norms of good conduct in scientific research, technological development and innovation activities, in accordance with the provisions of Law no. 206/2004::

"1. falsification results or data and presenting them as experimental data, as data obtained through calculations or numerical simulations on the computer or as data or results obtained through analytical calculations or deductive reasoning;

2. falsification of experimental data, data obtained through numerical calculations or computer simulations or data/results obtained through analytical calculations or deductive reasoning;

3. deliberately hindering, preventing or sabotaging the research-development activity of other people, including unjustifiably blocking access to research-development spaces, damaging, destroying or manipulating experimental equipment, equipment, documents, computer programs, of data in electronic format, of organic or inorganic substances or of living matter needed by other persons for the development, realization or completion of research and development activities.

4. plagiarism;

5. self-plagiarism;

6. the inclusion in the list of authors of a scientific publication of one or more co-authors who did not contribute significantly to the publication or the exclusion of some co-authors who contributed significantly to the publication;

7. inclusion in the list of authors of a scientific publication of a person without his consent;

8. unauthorized publication or dissemination by the authors of unpublished results, hypotheses, theories or scientific methods;

9. the introduction of false information in requests for grants or funding, in application files for habilitation, for university teaching positions or for research and development positions;

10. abuse of authority in order to obtain the quality of author or co-author of the publications of subordinates;

11. abuse of authority to obtain salary, remuneration or other material benefits from research and development projects led or coordinated by subordinates;

12. abuse of authority to obtain the status of author or co-author of the publications of subordinates or to obtain salary, remuneration or other material benefits for spouses, relatives or relatives up to the third degree inclusive;

13. abuse of authority to unjustifiably impose one's own theories, concepts or results on subordinates;

14. obstructing the activity of an ethics commission, of an analysis commission during an analysis of some deviations from good conduct in subordinate research-development activity;

15. non-compliance with the provisions and legal procedures intended to comply with the norms of good conduct in the research-development activity provided for in Law 206/2004, in Law no. 1/2011, in the Code of Ethics, in the codes of ethics by fields, in the organizational regulations, in the UPT Charter, including the non-implementation of the sanctions established by the ethics commissions according to art. 11 paragraph (6) from Law no. 206/2004

16. the facts provided by art. 221, para. 2 of the UPT Charter, which are not expressly mentioned in the present article."

We cannot close this section without a final reference to the book *Doctorate factory or How to undermine the foundations* of a nation by journalist and professor Emilia Șercan (2017b, 11), which describes and proves the illegalities of the Doctoral School of the "Mihai Viteazul" National Information Academy (ANIMV) of the Romanian Intelligence Service (SRI) and the university professor and politician Gabriel Oprea, plagiarist and coordinator of plagiarized works: "For a society used to the big financial schemes, unrolled before the overly lenient eyes of the electorate, the accusation that some public figures have stole ideas, paragraphs or book chapters probably seemed deeply ridiculous. But appropriating words or ideas is no less serious than, for example, embezzling public money. It must be understood that plagiarism means theft, and theft is unacceptable in any developed, solid society, built on correct principles [...] Plagiarism has not only affected doctoral theses in a major way. I was to discover that it was a widespread practice, just as extensive in the case of books, university courses or

supposedly scientific articles. Many people took advantage of the fact that plagiarism was never seriously punished and that universities did not make anti-plagiarism a credible policy. Some have built their careers - teaching, political, professional - on the basis of copied works, and others have closed their eyes, pretending not to see." It should not be forgotten and overlooked that plagiarism is "fraud with a masked face" (David Boia) and together with other corrupt forms of academic integrity are dark practices which we should beware of for to be able to appear honest, professional and responsible in the light of public discourse.

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Chapter 6. LEGAL ASPECTS OF ACADEMIC MISCONDUCT. INTELLECTUAL PROPERTY

This chapter contains an introduction to the law, necessary to understand the concept of intellectual property.

a. Introduction – notions of Law

Law is a social science whose object of study is a certain type of rules that govern relationships between people. These rules are necessary to ensure the coverage of fundamental needs, including order and safety in society.

1. Legal norm

The legal norm is a rule created in a society and aims to regulate the conduct of individuals. The legal norm is implemented and defended by the state, respectively its public authorities. The creation of legal norms rests on the basis of the link between citizens and the state and falls under the responsibility of one or more of its organs..

In Romania, the primary legal norms are created by the legislative power, represented by the Parliament and, as an exception, but in accordance with the fundamental law - the Constitution, by the Government.

As an external form, the primary legal norms are contained in laws (created by the Parliament) or ordinances, respectively emergency ordinances (created by the Government). Secondary legal norms are created by the bodies that make up the entire state apparatus, such as e.g. ministries, autonomous public administration authorities, local public administration authorities, etc., each state body corresponding to a specific external form of the legal norm: ministerial orders, instructions, methodological norms, decisions, decisions of the County or Local Council, authorizations etc.

As an immediate example, the Polytechnic University of Timișoara (hereinafter "UPT") is an institution of the Romanian state. It satisfies a public interest, that of education, and its

regulations, Senate decisions and even the Code of Ethics of the Polytechnic University of Timișoara (UPT) contain legal norms.

Legal norms may provide for rights, freedoms or obligations of the individuals to whom they are addressed and applied. Thus, through fundamental legal norms, such as those contained in the Constitution, we are guaranteed the most important rights, such as the right to life, to physical and mental integrity, the right to freedom of movement, the right to freedom of expression or the right to property. These rights are called fundamental rights and freedoms.

The legal norm has a particularity that distinguishes it from all other social norms existing in society: the sanction that is applied in case of non-compliance with the norm. This is called legal sanction. The legal norm is the only social norm whose sanction is applied by specialized state authorities in accordance with a set of standardized rules applicable to any individual within their scope. Also, legal sanctions are likely to temporarily or permanently limit a person's freedoms and rights, in some countries in the world even the right to life. In principle, the sanctions are applied in proportion to the seriousness of the committed act and the importance of the violated legal norms. In Romania, the most severe legal sanction is life imprisonment (art. 56-59 Penal Code), applicable only to very serious violations of the existing legal norms in Romania. Other legal sanctions are imprisonment for a limited period of time, fine, confiscation of assets, prohibition to leave the country or locality, prohibition to hold public office, etc.

By applying the legal sanction society, through the state created by it, pursues several goals according to the legal theory:

- restoring the existing legal order before the violation of the legal norm
- preventing the violation of order and legal norms in the future
- correction of the individual who committed the violation

All these purposes relate to the values existing in society at a certain moment, consecrated by their inclusion in fundamental legal norms. ¹

As an immediate example, some legal norms issued by the UPT contain sanctions of a legal nature, such as expulsion for disciplinary reasons or the dismissal of some employees in case of violation of the institution's regulations.

¹ Mihai, Gh., Motica, R. 1997. Fundamentele dreptului. Teoria și filosofia dreptului. Ed. ALL, București, p. 32.

2. The legal system and its branches

All existing legal norms in the legislation of a state, regardless of the body that created them, make up its legal system. The legal system in Romania is made up of branches of law that bring together legal norms that regulate different areas of social life. For example, the legal rules that regulate patrimonial relations (with value expressible in money) between private persons are included in the branch of civil law. The rules that regulate the regime of the most serious deviations from the legal rules that can be committed by individuals (called crimes), are included in the branch of criminal law.

The legal sanctions resulting from violations of the legal norms belonging to the different branches of law are also specific to the branches of the legal system. The most drastic sanctions belong to the criminal law, which contains the most serious violations of some legal norms that protect the life and property of individuals.

b. Intellectual property.

1. Branch of intellectual property law

One of the branches of the legal system in Romania is the branch of intellectual property law, which includes all the legal norms related to this field of social life. The fundamental concept underlying all the legal norms that make up this branch is that of property. From the point of view of the science of law, the property right is a legal institution, because it brings together a multitude of legal norms that refer to this concept.

2. About the property right

The property right is that right of a person that expresses the appropriation of an asset and allows its owner to possess, use and dispose of that asset, in his own interest and power within the limits imposed by the rules that make up the legal system, i.e. the legislation in force.²

²See also Bîrsan, C. 2008. Drept civil. Drepturile reale principale. Ed. Hamangiu, București, p. 31 for additional references regarding the definition of property rights.

A brief explanation of the elements that make up this definition helps to understand more clearly the legal concept of ownership. The idea of appropriating an asset is encompassed by the three elements that constitute the right of ownership:

- possession of the property by the owner
- use according to the owner's own will refers to any permitted form of use of a good, including obtaining a material advantage (e.g. profit) from the use
- disposition of a good refers to the fact that the owner alone decides the fate of his asset, including its preservation, its capitalization through sale, the free transfer through donation or even the destruction of the respective asset as long as the legal norms in force are respected. (As an idea, it is forbidden to destroy the property by the owner if it affects the rights of other people – rights to life and physical and mental integrity, property rights or the right to the cultural heritage of a state).

The owner enjoys the right of ownership of his goods in his own interest, therefore independent of the will of other people, including that of the state. Also, the phrase "in one's own power" means that the owner can use his property and benefits from the relationship of ownership of the property without the need for the intervention or permission of another person, including the state. The owner is free in his right to property and completely independent, the state can only support and protect him, through specialized institutions (e.g. the Police), within its attribution of guarantor and keeper of public order. All other members of society, including the state and its institutions, are instead obliged to respect this property right without infringing it.

The owner of the property right can be any person, private or public, e.g. an institution or body of the state, provided that the property is legally acquired. "Lawfully" means in accordance with the provisions of existing (in force) legal norms. There are several ways of acquiring the right of ownership³, the most important and relevant in the context of intellectual property being the convention (which takes the form of a contract), the succession or the court decision. The convention can involve an alienation with onerous title - the sale-purchase, or with a free title - the donation. Succession takes place in the case of the owner's disappearance through death or dissolution, in the case of legal entities.

3. The concept of intellectual property

The concept of intellectual property is defined as the set of legal rules that regulate relations between individuals regarding "the protection of intellectual creation in the industrial, scientific, literary and artistic fields as well as the distinctive signs of commercial activity." ⁴

³See for a listing and overview of these modes Bîrsan, op. cit., p. 307 and the following.

⁴Macovei, I. 2010. *Tratat de drept al proprietății intelectuale*, Ed. C.H. Beck, București, p. 5.

Like the property right in general, the intellectual property right is characterized by the fact that its owner has the prerogatives of possession, use and disposition of the asset that belongs to him. Likewise, any other person automatically has the obligation to respect this right. This includes the prohibition of using property belonging to another owner without his consent or preventing the owner from exercising his right.⁵

Normele juridice care reglementează dreptul de proprietate intelectuală sunt de două tipuri: norme aparținând sistemului de drept din România și norme care aparțin sistemului de drept internațional.⁶

In the Romanian legal system, there are the following main normative acts whose object is the protection of intellectual property:

- Law 64/1991 on invention patents⁷
- Law 350/2007 on utility models⁸
- Law 129/1992 on the protection of designs and models⁹
- Law 16/1995 on the protection of topographies of semiconductor products¹⁰
- Law 84/1998 on trademarks and geographical indications¹¹
- Law 8/1996 on copyright¹²

To these acts are added a multitude of other secondary acts which bring additions and help to implement these laws.

In the international law system, there are several acts created through negotiations between different states, acts called conventions or treaties, to which Romania is a party and thereby undertakes to respect and implement them internally. Such international acts are: the Paris Convention for the Protection of Industrial Property (1884), the Berne Convention for the Protection of Literary and Artistic Works (1887), the Convention for the Establishment of the World Intellectual Property Organization-WIPO (1970) and many others, most regulating special areas such as patents or trademarks.

4. Forms of intellectual property

⁵Idem.

⁶For a classification and detail of these sources or sources of legal norms, see Macovei, op. cit. p. 10 and the following.

⁷Republished in M.O. nr. 541/2007

⁸M.O. nr. 821/2007

⁹Republished in M.O. 876/2007

¹⁰Republished in M.O. 824/2006

¹¹M.O. 161/1998

¹²M.O. 60/1996

Intellectual creation, from a legal point of view, according to the legal norms in force in Romania, takes the following main forms:

- **Invention:** an inspired and original¹³ contribution that meets certain conditions to be patentable, i.e. specifically protected by law. Art. 7 para. (1) of Law 64/1991 requires that the invention be new, involve an inventive activity and be susceptible to industrial application. Novelty means that the invention is not included in the current state of world technology¹⁴, and the technical elements of the solution are proprietary or original¹⁵. The current state of world technology includes all knowledge about the rules, methods and procedures used to achieve a certain result, knowledge accessible to the public all over the world.¹⁶

Inventive activity means that the invention resulting from this activity does not result obviously for a skilled person from the knowledge contained in current state of technology¹⁷

Industrial applicability means that the object of the invention can be manufactured or used in an industrial field.¹⁸

If these conditions are not met, the idea cannot be patented. Also, art. 8 of Law 64/1991 expressly excludes from the possibility of patenting certain achievements that cannot be considered inventions: discoveries, scientific theories, mathematical methods, aesthetic creations, plans, principles and methods in the exercise of mental activities, in the field of games or in the field economic activities, computer programs, information presentations.¹⁹

The invention patent is an official act, a title of protection that ensures its holder the exclusive right of exploitation, that is, it establishes from a legal point of view the connection between the owner and his intellectual property right over the invention. In addition to this title of protection there are others, each performing specific legal functions: utility certificate, additional certificate, European patent²⁰, etc. The validity of a patent can be a maximum of 20 years²¹, extensions being accepted only as an exception. After this period the invention passes into the public domain and can be used by any interested person.

¹³See WIPO. 2001. Introducere în proprietatea intelectuală, Ed. Rosetti, București, p. 54.

¹⁴Art. 10 alin. (1) L64/1991.

¹⁵Macovei, op. cit., p. 59.

¹⁶For specific details, see Macovei, op. cit. p. 62.

¹⁷Art. 12 alin. (1) L64/1991.

¹⁸Art. 13 L64/1991.

¹⁹However, several of these categories are protected by copyright, such as computer programs. Scientific discoveries are registered according to the Geneva Treaty of 1978 in a system that allows the association of the names of the authors of the discoveries made, while also ensuring its publicity in order to facilitate access to the widest possible audience. Exceptionally, computer programs can also be patented if they are an integrated part of a technological process that meets the conditions for patentability. See Macovei, op. Cit., p. 68.

²⁰It is issued by the European Patent Office (EPO), based in Munich, Germany.

²¹Macovei, op. cit., p. 84.

In the case of violation of the exclusive right certified by the patent, its owner can address a court that will order and fix the amount of patrimonial compensation. Personal and non-commercial use of the invention does not constitute a violation of this right.²²

The ownership right over the invention can be transferred in whole or in part by the owner through assignment (sale or donation, in whole or in part of the patent), licensing (transmission of only the right of exploitation, in whole or in part, exclusively or non-exclusive of the patent), succession (legal or testamentary, following the death of the holder).

- Penalties for infringement of patent rights: 1. If the inventor does not sufficiently exploit his patent, a court may decide to grant a compulsory license to another interested party. 2. Non-payment of the patent maintenance fee leads to forfeiture of the rights conferred by the patent. 3. The patent can be revoked for formal reasons (non-patentable object, unclear object, etc.). 4 Patrimonial sanctions in case of violation of the rights resulting from the patent by another person, i.e. compensation to be determined by a court, in money in relation to the damage or prejudice created. 5. Imprisonment from 6 months to 2 years or a criminal fine for wrongfully misappropriating the title of inventor. 6. Imprisonment from 3 months to 2 years or fine for counterfeiting an invention patent. 7. Imprisonment from 3 months to 2 years for the disclosure by OSIM staff or other persons of the data contained in patent applications before publication. 8. Imprisonment from 6 months to 2 years or a fine for the crime of unfair competition by applying false claims regarding invention patents to products.

- **Copyright**: "represents the set of legal norms that regulate social relations arising from the creation and exploitation of literary, artistic or scientific works or other works of intellectual creation."²³ Authorship can only be held by a natural person, even if the copyright can be transferred to a legal entity. The author is the creator of the work, even in its unfinished form.²⁴ If there are several authors, Law 8/1996 on copyright distinguishes between joint work and collective work.

The joint work is created by several co-authors in collaboration, one of whom may be the main author.²⁵ In some situations individual contributions can be distinguished, sometimes not. In the case of joint work, there is only one copyright with several owners.²⁶ It follows from this that any use of copyright requires the consent of all co-authors, any refusal having to be justified. Any remuneration will go to the co-authors in the manner agreed upon by them or in proportion to the contribution of each, if this cannot be established, equally. Example: audiovisual work.

²²Art. 34 alin. (1) lit. c) L64/1991.

²³Macovei, op. cit., p. 419.

²⁴Art. 3 alin (1) L8/1996.

²⁵Art. 5 alin. (1) și (2) L8/1996. For details, see Macovei, op. cit., p. 427.

²⁶Macovei, op. cit., p. 427.

A collective work is a creation in which the contributions of co-authors form a unity by its nature. From this situation it follows that the copyright belongs to the initiator of the work, i.e. the natural or legal person who had the initiative to create the work. However, by agreement between the co-authors something else can be stipulated. The initiator is not equal to the co-authors, having the right to lead them. Examples: collection of problems, dictionaries, encyclopedias, computer programs. The work is indivisible even if the co-authors are known.

All created works are equally protected by the law if they cumulatively meet the following conditions: ²⁷ 1. to result from a creative activity of the author, 2. "to take on a concrete form of expression, perceptible to the senses"²⁸ and 3. to be able to be brought to public knowledge.

Original works are created without using for this purpose other works that precede them. Examples, according to art. 7 of Law 8/1996: literary writings, conferences, computer programs²⁹, scientific works, written or oral, musical compositions, audiovisual, dramatic and photographic works.

Derivative works are created by using one or more pre-existing works. Examples, according to art. 8 of Law 8/1996: translations, adaptations, documentary works, other transformations of musical, literary, scientific or artistic works, collections of works of any kind, data compilations, databases or other materials.

They are not protected by copyright according to art. 9 of Law 8/1996: ideas, theories, concepts, scientific discoveries, procedures, methods or mathematical concepts, inventions contained in a work, official political, legislative, judicial texts and their translations, official symbols, (all belong to the public domain!) means of payment, simple facts and data or news and press information. Ideas themselves cannot be protected, only their manner of fixation and expression.

Copyright gives its owner, regardless of the nature of his creation, certain moral and some patrimonial rights. They are moral rights, according to art. 10 of Law 8/1996: the right to decide if, how and when the work will be made public, the right to claim authorship, the right to decide the name of the publication of the work, the right to claim respect for the integrity of the work and to opposes any tampering with the work and even the right to withdraw the work, with compensation to any holders of rights of use. Moral copyrights cannot be alienated and the author cannot waive them. ³⁰ Art. 12 and 21 of Law 8/1996 provide for certain patrimonial rights of the author of the work: the right to use the work and the resale right. The right to use the work includes: the author's authorization of reproduction, distribution, import of copies, rental, loan, communication by any means of the

²⁷See, for a bibliography of legal theories, Macovei, op. cit., p. 431.

²⁸Macovei, op. cit., p. 431.

²⁹For computer programs, see also Directive 91/250/EEC on the legal protection of computer programs, accessible on eur-lex.eu, as well as details in Macovei, op. cit., pp. 488-496.

³⁰Art. 11 L8/1996.

work, creation of derivative works.³¹ The resale right assumes that an author who sells his work (Law 8/1996 includes only graphic works, works of plastic or photographic art in the scope of this right) at a reduced price, will receive, from subsequent sales, a share of the net price for sale obtained.³² Also, the author has the right to be informed about the location of his work.

Duration of copyright protection. Copyright arises from the moment of creation of the work, respectively of its components, if they follow each other in time. Among the author's moral rights - the right of disclosure, the right to authorship and the inviolability of the work are perpetual, being transmitted to the author's heirs. Copyright patrimonial rights have a limited duration in time.³³ Art. 25 para. (1) decrees that the right to use the work and the right to resale last for the lifetime of the author, plus a period of 70 years in which these rights act for the benefit of his heirs, or, in their absence, for the benefit of an organization of collective management of copyright. In the case of works created in collaboration, the protection period is 70 years from the death of the last co-author.³⁴ If the contributions of co-authors can be distinguished, the duration is calculated separately for each individual contribution. In the case of collective works, the duration of protection of patrimonial rights is 70 years from the date of bringing the works to public knowledge. In the case of not being brought to public knowledge for 70 years, the 70-year term applies from the creation of the work. After the expiration of the term of protection, the works, regardless of their nature, pass into the public domain, their use being free. For example, numerous literary works enter the public domain every year.

The transmission of copyrights for the purpose of their exploitation can be done by assignment, in exchange for remuneration, the terms and object of the assignment (one or more copyrights, in whole or in part, exclusively or non-exclusively, time limits, etc.) being established by convention.

- Sanctions for copyright infringement: 1. Property sanctions in case of copyright infringement by another person, i.e. compensation to be determined by a court, in money in relation to the damage or prejudice created. 2. Certain violations of copyright may constitute contraventions, being followed by sanctions according to the rules of administrative law and are registered in the criminal record.³⁵ The contravention is sanctioned by paying a fine, the amount of which is established by law. 3 Other more serious violations are punishable by criminal penalties, including deprivation of liberty³⁶, such as those for the creation of pirated goods, copied from creations protected by copyright, the unauthorized reproduction of computer programs, the distribution of such goods, the creation of derivative works without

³¹Art. 13 L8/1996.

³²Macovei, op. cit., p. 458.

³³For reasons, see Macovei, op. cit., p. 462.

³⁴Art. 27 alin. (1) L8/1996.

³⁵See art. 139² and 139⁴ from L8/1996.

³⁶See art. 139⁶, 139⁷, 139⁸, 139⁹, 140, 141, 141¹ and 140 from L8/1996.

the consent of the copyright holder, the sale of products intended to allow the neutralization of technical protection measures, etc. Many of these crimes are punishable by 1 to 4 years in prison or other limits.

- **Utility models** are protected by Law 350/2007. These represent technical creations that, through the form of construction or assembly of a product, have a utilitarian role.³⁷ They are also called "small inventions", because their realization requires a low degree of inventiveness and therefore cannot be patented. Examples: devices, installations, equipment, machine tools, apparatus, electrical, pneumatic or hydraulic circuits, physical mixtures defined by the component elements. Utility models can be protected if they represent new technical inventions, not included in the prior state of technology, which exceed the level of simple professional skill and are susceptible of professional application. They usually represent the solution to a technical problem. The duration of protection in this category is 6 years, and the rights arising from protection are similar to those in the patent category.³⁸ Penalties for infringement are comparable to those for patents.
- **Drawings and models** are creations of external form, which allow the individualization of an industrial product at an aesthetic level.³⁹ The aesthetic element can refer to the shape, pattern or color of the product, this element facilitating the recognition of the product by consumers and its marketing. Drawings are, in the sense of the law, two-dimensional assemblies of lines and colors with a specific character, while models are made in three dimensions, regardless of scale. The duration of the protection is 10 years and can be renewed three times successively for 5 years each. The resulting rights are similar to those of the author of an invention, minus the moral rights.

c. Conclusions

Intellectual property refers to a set of rights that allow their owners to capitalize on them, to defend them as well as to be recognized as the author of an invention or work. The violation of these rights is sanctioned by several types of legal sanctions, some of which can be evaluated in money (compensation, fines), and others even deprivation of liberty (detention for a period of time). These sanctions may operate concurrently (eg the obligation to pay compensation in parallel with a custodial sentence).

Chapter 7. LEGAL ASPECTS OF ACADEMIC MISCONDUCT. ACADEMIC DISCIPLINE (AS PART OF WORK DISCIPLINE)

³⁷See Macovei, op. cit., p. 211.

³⁸Macovei, op. cit., p. 229 and the following.

³⁹Macovei, op. cit., p. 236.

This chapter intends to offer an introduction to the concepts of work discipline, respectively academic discipline and to present the consequences of possible deviations from them.

a. Labor law

Labor law represents one of the branches of the legal system and contains the legal norms that have as their object the social labor relations between employees and employers.⁴⁰ Most labor law norms are contained in the Labor Code (Law no. 53/2003). Art. 39 para. (2) lit. b) of this code stipulates that the employee has the obligation to respect work discipline, among other obligations, such as the performance of work.

Labor discipline is, from a legal point of view, the obligation that includes all the duties assumed by the employee by signing the employment contract.⁴¹ Labor discipline can also be defined as an order necessary for the execution of the employment relationship resulting from the observance of some rules of conduct intended to ensure the smooth progress of the work.

The legal norms that contain the provisions related to labor discipline are the Labor Code that regulates disciplinary liability, collective labor contracts as well as the statutory laws of a profession (e.g. the status of teaching staff is regulated by Law 1/2011 on education) and the regulations the interior of the unit where the employee works.

Labor discipline is achieved through two components, one stimulatory (promotion, grant of increments, award of merit pay, etc.) and one corrective, by applying sanctions within the framework of disciplinary liability.⁴²

Disciplinary liability is a legal institution consisting of legal norms that define disciplinary violations and establish sanctions and conditions for their application.

Legal responsibility acts on the basis of a freely agreed contract, the individual employment contract, through which the employee and the employer assume mutual legal obligations, has a sanctioning, preventive and educational function and individual character, everyone being responsible only for his own deed.⁴³

⁴⁰Radu, C. 2008. Dreptul muncii, Editura C.H. Beck, București, p. 1.

⁴¹Radu, op. cit., p. 25.

⁴²Idem.

⁴³See Radu, op. cit., p. 281.

Disciplinary misconduct is an act that violates the legal norms that regulate the employment relationship (contained in the individual or collective employment contract and in the internal regulations), the orders and legal provisions of the hierarchical superiors.⁴⁴

Art. 264 of the Labor Code provides for the following sanctions: 1. Written warning. 2. Suspension of the individual employment contract for a maximum period of 10 working days, during which the sanctioned person has no salary rights. 3. Demotion in position for a maximum period of 60 days, with the corresponding salary of the new position. 4. Reduction of the basic salary for a period of 1-3 months, by 5-10% 5. Reduction of the basic salary and possible management allowance, for a period of 1-3 months, by 5-10%. 6. Disciplinary cancellation of the individual employment contract.

These sanctions must be applied in ascending order, as provided by law, giving the wrongdoer the opportunity to correct himself.

It should be noted that the disciplinary liability of employees operates simultaneously with other legal forms of liability and sanction: thus a person can be disciplinary sanctioned by the employer and at the same time sentenced by a court to cover any damage caused to the employer. A criminal conviction with a fine or custodial sentence can also operate parallel to them. For example, if an employee violates, by not respecting the copyright, at the same time provisions of the individual employment contract and causes the employer a damage that can be evaluated in money, he will have to answer on both levels of the different branches of law. Added to this is the coverage of any damage to the copyright owner.

b. Academic discipline – good academic conduct

Like labor discipline for employees, academic discipline is legally based on a contractual relationship. The student, regardless of the study cycle in which he is enrolled at a higher education institution, has assumed several obligations towards that institution through the study contract. Among these obligations is compliance with the discipline regime of the educational institution. Analogous to the concept of work discipline, from a legal point of view, academic discipline is based on the set of legal norms that aim to ensure the optimal development of academic, study and research activities.

From a legal perspective, good academic conduct is based on explicit and implicit legal norms. Some educational institutions make express reference to good conduct in research, including norms of an ethical nature (such as good faith and the validity of data

⁴⁴Radu, op. cit., p. 282.

used in research), but which are additionally and implicitly reinforced by the legal norms in force, especially those in the field of copyright, but also in the other fields of intellectual property law (e.g. plagiarism constitutes at the same time a deviation from good academic conduct, it is also a moral violation, but it also constitutes a violation of the copyright of the plagiarized person).

The legal norms that regulate academic discipline, good research and academic conduct are contained, even unsystematized, in the various internal regulations issued based on the principle of university autonomy enshrined in the education law.⁴⁵ The internal regulations of the universities are approved by their governing bodies, the University Senates.

The sanctions applicable to the violation of these rules can be classified according to the persons who commit the violations: 1. The personnel employed with an employment contract are primarily responsible according to the disciplinary liability established by labor law, not excluding, as I mentioned above, other forms liability, patrimonial, criminal, contravention, as the case may be. 2. Enrolled students are responsible based on the study contract by which they assume compliance with the university's internal regulations, i.e. they are contractually responsible for non-compliance with the legal rules contained in the study contract. This responsibility is comparable to the disciplinary responsibility, because the harshest sanction provides for leaving the relationship with the university, through expulsion. Of course, as well as disciplinary liability under labor law, other forms of liability are not excluded at the same time, such as patrimonial liability if material damage is caused to the owner of a copyright or the educational institution, or criminal liability, if they are fulfilled the conditions provided by the respective laws.

c. Conclusions

The academic discipline is comparable in content and in the degree of responsibility and sanctions to the work discipline. Some internal regulations of higher education institutions can enshrine ethical norms, giving them legal value in case of violation, the sanction can be part of the legal field.

⁴⁵See art. 118 alin (1) lit. a) from L1/2011.

